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Case Number: 24TRCV03722 Hearing Date: September 23, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

DEBRA BERRY

;

Plaintiff,

vs.

GARY OCAMPO

, et al.;

Defendants.

Case

No.:

24TRCV03722

Hearing

Date:

September
23, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1) DEFENDANTS' Demurrer to Plaintiff Debra Berry's FOURTH Amended
ComplainT

(2) DEFENDANTS' motion to strike portions of Plaintiff Debra Berry's FOURTH
Amended ComplainT

(3) PLAINTIFF Debra Berry'S REQUEST FOR LEAVE TO AMEND

MOVING PARTY: Defendants, Gary Ocampo, YMCA of
Metropolitan Los Angeles [Erroneously Sued and Served as Westchester Family
YMCA], and Dawn Ezerard

RESPONDING PARTY: Plaintiff, Debra Berry

(1)

Defendants' Demurrer

to Plaintiff Debra Berry's Fourth Amended Complaint is OVERRULED as to the
second cause of action and SUSTAINED as to the first, third, fourth, fifth,
sixth, seventh, eighth, ninth, and tenth causes of action pursuant to Code of
Civil Procedure section 430.10.

(2)

Defendants' Motion

to Strike Portions of Plaintiff Debra Berry's Fourth Amended Complaint is GRANTED
IN PART pursuant to Code of Civil Procedure section 435.

(3)

Plaintiff Debra

Berry's Request for Leave to Amend is DENIED.

The Court considers the moving papers filed on July 31, 2026, the opposition briefs filed on August 11 and 12, 2026, and the reply briefs filed on September 1, 2026.

BACKGROUND

Factual Background

On November 4, 2024, plaintiff Debra Berry ("Plaintiff") filed a Complaint against defendants Gary Ocampo, in his individual and official capacity as Executive Director of the Westchester Family YMCA, and Dawn, individually and in her official capacity as the on-duty YMCA Staff Employee (collectively, "Defendants"). On July 8, 2025, Plaintiff filed her First Amended Complaint ("FAC") against Defendants. On February 3, 2026, Plaintiff filed her Second Amended Complaint ("SAC") against Defendants.

On April 20, 2026, Plaintiff filed her Third Amended Complaint ("TAC") against Defendants and DOES 1 through 50. The TAC contained the following causes of action: (1) Violation of Unruh Civil Rights Act – Civil Code § 51; (2) Retaliation; (3) Defamation; (4) Negligence; (5) Negligent Record-Keeping; and (6) Bane Act.

On July 1, 2026, Plaintiff filed her Fourth Amended Complaint ("4AC") against Defendants and DOES 1 through 50. The 4AC includes the following causes of action: (1) Violation of Unruh Civil Rights Act – Civil Code § 51; (2) Retaliation; (3) Defamation; (4) Negligence; (5) Negligent Record-Keeping; (6) Bane Act; (7) False Light; (8) Intentional Infliction of Emotional Distress; (9) Fraud/Intentional Misrepresentation; and (10) Declaratory Relief.

On July 24, 2026, Defendants' counsel mailed a meet-and-confer letter to Plaintiff regarding the alleged deficiencies discussed in the demurrer and motion to strike. (Declaration of Allison Lee Fischer re: Demurrer ("Dem. Fischer Decl."), ¶¶ 2, 4, Exh. A; Declaration of Allison Lee Fischer re: Motion to Strike ("MTS Fischer Decl."), ¶¶ 2, 4, Exh. A.) It remains uncertain

whether Plaintiff responded; however, Defendants' counsel contends that the parties were unable to resolve the issues presented. (Dem. Fischer Decl., ¶ 3; MTS Fischer Decl., ¶ 3.)

Procedural Background

On July 31, 2026, Defendants filed this demurrer and motion to strike. On August 11, 2026, Plaintiff filed an opposition brief to the demurrer. On August 12, 2026, Plaintiff filed an opposition brief to the motion to strike. On September 1, 2026, Defendants filed reply briefs.

MEET AND CONFER REQUIREMENT

Before filing a demurrer or motion to strike, the moving party is required to meet and confer in person, by telephone, or via video conference with the party that filed the pleading that is subject to the motion to determine whether an agreement can be reached that would resolve the objections to be raised in the demurrer or motion to strike. (Code Civ. Proc., §§ 430.41, subd. (a), 435.5, subd. (a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (Code Civ. Proc., §§ 430.41, subd. (a)(2), 435.5, subd. (a)(2).) Thereafter, the moving party shall file and serve a declaration detailing their meet and confer efforts. (Code Civ. Proc., §§ 430.41, subd. (a)(3), 435.5, subd. (a)(3).)

A determination by the court that the meet and confer process was inadequate shall not be grounds to overrule or sustain a demurrer, or to grant or deny a motion to strike. (Code Civil Proc., §§ 430.41, subd. (a)(4), 435.5, subd. (a)(4).)

On July 24, 2026, Defendants' counsel mailed a meet-and-confer letter to Plaintiff regarding the alleged deficiencies discussed in the demurrer and motion to strike. (Dem. Fischer Decl., ¶¶ 2, 4, Exh. A; MTS Fischer Decl., ¶¶ 2, 4, Exh. A.) It remains uncertain whether Plaintiff responded; however, Defendants' counsel contends that the parties were unable to resolve the issues presented. (Dem. Fischer Decl., ¶ 3; MTS Fischer Decl., ¶ 3.)

Although the parties did not

engage in the meet-and-confer process as required, the Court will still consider the merits of the motion. An insufficient meet-and-confer process is not a valid reason to overrule or sustain a demurrer or to grant or deny a motion to strike.

DEMURRER

Legal Standard

A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) "To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872.) For the purpose of testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966-967.) A demurrer "does not admit contentions, deductions or conclusions of fact or law." (*Daar v. Yellow Cab Co.* (1967) 67 Cal.2d 695, 713.)

A pleading is uncertain if it is ambiguous or unintelligible. (Code Civ. Proc., § 430.10, subd. (f).) A demurrer for uncertainty may lie if the failure to label the parties and claims renders the complaint so confusing that the defendant cannot tell what he or she is supposed to respond to. (*Williams v. Beechnut Nutrition Corp.* (1986) 185 Cal.App.3d 135, 139, fn. 2.) However, "[a] demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.)

Discussion

First Cause of Action – Violation of the Unruh Civil Rights Act

Defendants demur to Plaintiff's

first cause of action for violation of the Unruh Civil Rights Act on the grounds that (1) "Plaintiff failed to allege facts showing discrimination based on a protected characteristic[;]" and (2) the claim is uncertain. (Dem., pp. 12:11, 19:21-20:11.) The Court agrees with the first argument and, consequently, will refrain from addressing the merits of the remaining argument.

"The Unruh Act prohibits certain forms of discrimination against individuals by businesses. ... Unruh Act claims include the following elements: (i) defendant denied plaintiff full and equal accommodations, advantages, facilities, privileges, or services; (ii) that a substantial motivating reason for defendant's conduct was plaintiff's membership in a protected class; (iii) that plaintiff was harmed; and (iv) that defendant's conduct was a substantial factor in causing plaintiff's harm." (Nia v. Bank of America, N.A. (S.D.Cal. 2022) 603 F.Supp.3d 894, 906 (Nia).)

Moreover, "Plaintiff's complaint must include 'some factual context that gives rise to a plausible inference of discriminatory intent[.]' " (Nia, supra, 603 F.Supp.3d at p. 906.) Plaintiff must sufficiently allege that they were subjected to discrimination based on their status as a member of a protected class. (Duronslet v. County of Los Angeles (2017) 266 F.Supp.3d 1213, 1217.)

Plaintiff alleges that "Defendants denied Plaintiff full equal access to a public accommodation" and contends that "Defendants' actions were arbitrary, discriminatory, and retaliatory." (4AC, p. 3:15-19.) However, Plaintiff fails to provide factual allegations that demonstrate access was denied based on her status as a member of a protected class.

In her opposition, Plaintiff argues that "Defendants isolated selected allegations while disregarding the complaint's broader factual narrative.

The Fourth Amended Complaint alleges a course of conduct that, when viewed in its entirety, supports Plaintiff's contention that she was denied the full and equal accommodations, advantages, facilities, privileges, and services of Defendants' business establishment.

Whether Plaintiff can ultimately prove those allegations is a question for discovery and trial – not demurrer."

(Opp. to Dem., p. 8:18-25.)

The Court agrees that that the determination of whether Plaintiff can ultimately substantiate those allegations is indeed a matter for discovery and trial. However, Plaintiff must first “plead[] facts, if accepted as true, are sufficient to state a legally cognizable claim.” (Opp., p. 8:13-14.) Plaintiff has not fulfilled this requirement.

Under the Unruh Civil Rights Act, Plaintiff is obligated to allege facts demonstrating that access was denied due to her status as a member of a protected class. Plaintiff does not make this claim in either her 4AC or her opposition.

Accordingly, the Court SUSTAINS Defendants’ demurrer to the first cause of action for violation of the Unruh Civil Rights Act.

Second Cause of Action – Retaliation

Defendants demur to

Plaintiff’s second cause of action for retaliation on the grounds that (1) Plaintiff fails to identify a basis for the claim, which must be founded on a specific statute or other “statutory scheme creating a private right of action[;]” and (2) the claim is uncertain. (Dem., pp. 13:5-15, 19:21-20:11.)

The Court finds the first argument unpersuasive, as Defendants have not provided any relevant case law or statutory support for their position.

Regarding the second argument, Defendants contend that the claim is uncertain because “Plaintiff repeatedly alleges that ‘Defendants’ engaged in the challenged conduct without identifying which Defendant allegedly performed which act. Although Plaintiff names three separate Defendants—YMCA of Metropolitan Los Angeles, Gary Ocampo, and Dawn Ezerard—she consistently attributes all conduct to ‘Defendants’ collectively. The FAC does not identify which Defendant allegedly ... engaged in the conduct underlying the [] cause[] of action. ... As a result, Defendants cannot reasonably determine the factual basis of the claim[] asserted against them or prepare a meaningful response.” (Dem., p. 20:2-7, 9-10.)

In the second cause of action, Plaintiff asserts, “Defendants retaliated against Plaintiff by

excluding and labeling her as a threat.”

(4AC, p. 3:24-25.) She further

states, “Defendants subsequently entered Plaintiff into the YMCA ALERT system.” (4AC, p. 4:6-7.) Additionally, Plaintiff alleges that “Defendants

knew or should have known the statements were false and acted with reckless

disregard for Plaintiff’s rights.” (4AC,

p. 4:20-21.)

However, earlier in the

4AC, Plaintiff claims that Ocampo and Ezerard served as managing agents of YMCA

of Metropolitan Los Angeles (“YMCA”).

(4AC, p. 3:1-11.) Plaintiff

additionally contends that as managing agents, “[t]hey authorized, approved,

and ratified the ALERT and Plaintiff’s exclusion” and that “their actions constitute

corporate policy attributable to Defendant YMCA.” (4AC, p. 3:8-12.) As such, it is evident that Plaintiff

attributes the alleged conduct to both Ocampo and Ezerard on behalf of YMCA.

This lack of specificity is not so unclear as to prevent Defendants from

reasonably determining the factual foundation of the claim asserted against

them or from preparing an adequate response.

Accordingly, the Court OVERRULES Defendants’ demurrer to the second

cause of action for retaliation.

Third Cause of Action – Defamation

Defendants demur to Plaintiff’s

third cause of action for defamation on the grounds that Plaintiff fails to:

(1) “identify a provably

false statement[.]” (2) “plead publication with the required specificity[.]” and

(3) “allege facts sufficient to overcome the common-interest privilege.” (Dem., p. 13:24-26.) Defendants additionally contend that the

claim is uncertain. (Dem., pp. 19:21-20:11.) The Court agrees with the first argument and,

consequently, will refrain from addressing the merits of the latter three

arguments.

“Defamation is an invasion

of the interest in reputation. The tort

involves the intentional publication of a statement of fact that is false,

unprivileged, and has a natural tendency to injure or which causes special

damage. [Citation.] Publication means communication to some third

person who understands the defamatory meaning of the statement and its application to the person to whom reference is made. Publication need not be to the 'public' at large; communication to a single individual is sufficient. [Citation.]" (Smith v. Maldonado (199) 72 Cal.App.4th 637, 645, citations omitted.)

"The question whether a statement is reasonably susceptible to a defamatory interpretation is a question of law for the trial court. Only once the court has determined that a statement is reasonably susceptible to such a defamatory interpretation does it become a question for the trier of fact whether or not it was so understood." (Smith v. Maldonado (1999) 72 Cal.App.4th 637, 647.)

Plaintiff asserts that "Defendants published false statements including: ¶ * 'DO NOT ALLOW ACCESS' ¶ * 'DO NOT ALLOW TO ENTER FACILITY[.]' ¶ These statement implied Plaintiff was dangerous or engaged in misconduct. ¶ These statements were false and were communicated to multiple YMCA employees and locations." (4AC, p. 5:3-9.)

The Court finds that "DO NOT ALLOW ACCESS" and "DO NOT ALLOW TO ENTER FACILITY" do not constitute statements of fact. As Defendants argue, "[a]n internal instruction regarding a member's access is not, by itself, a provably false statement of fact." (Dem., p. 14:5-6.)

Accordingly, the Court SUSTAINS Defendants' demurrer to the third cause of action for defamation.

Fourth Cause of Action – Negligence

Defendants demur to Plaintiff's fourth cause of action for negligence on the grounds that (1) Plaintiff fails to allege a legal duty owed by Defendants; (2) Plaintiff fails to "allege a traditional negligence or premises liability claim[.]" and (3) the claim is uncertain. (Dem., pp. 14:20, 15:2, 19:21-20:11.) The Court agrees with the first argument and, consequently, will refrain from addressing the merits of the latter two arguments.

“Actionable negligence

involves a legal duty to use due care, a breach of such legal duty, and the breach as the proximate or legal cause of the resulting injury.” (United States Liab. Ins. Co. v. Haidinger-Hayers, Inc. (1970) 1 Cal.3d 586, 594.)

Plaintiff contends that

“Defendant owed a duty as a lawful person.”

(4AC, ¶ 56.) However, this

assertion does not delineate a specific duty that Defendants owed to Plaintiff in their capacity as lawful entities or persons.

Accordingly, the Court SUSTAINS Defendants’ demurrer to the fourth cause of action for negligence.

Fifth Cause of Action – Negligent

Record-Keeping

Defendants demur to

Plaintiff’s fifth cause of action for negligent record-keeping on the grounds that (1) Plaintiff’s claim “is based on the same allegation underlying her defamation claim—that Defendants created and disseminated an inaccurate internal YMCA ALERT[;]” (2) Plaintiff fails to allege a legal duty owed by Defendants; and (3) the claim is uncertain.

(Dem., pp. 15:13-23, 19:21-20:11.)

The Court agrees with the second argument and, consequently, will refrain from addressing the merits of the other two.

“Actionable negligence

involves a legal duty to use due care, a breach of such legal duty, and the breach as the proximate or legal cause of the resulting injury.” (United States Liab. Ins. Co. v. Haidinger-Hayers, Inc. (1970) 1 Cal.3d 586, 594.)

In this instance, Plaintiff

does not allege that Defendants owed her any legal duty. (See 4AC, p. 5:13-15.)

Accordingly, the Court SUSTAINS Defendants’ demurrer to the fifth cause of action for negligent record-keeping.

Sixth Cause of Action – Bane Act

Defendants demur to

Plaintiff's sixth cause of action for Bane Act on the grounds that (1)

Plaintiff "fails to allege interference with a constitutional or statutory

right through threats, intimidation, or coercion, as required by Civil Code

section 52.1[.]" and (2) the claim is uncertain. (Dem., pp. 16:6-8, 19:21-20:11.) The Court agrees with the first argument and, consequently, will refrain from addressing the merits of the remaining argument.

The Bane Act "protect[s] against

all conduct aimed at interfer[ing] with rights secured by the constitutional or

statutory law of the United States, or of California, where the interference is

carried out by threats, intimidation or coercion, whether or not the offending

conduct is motivated by discriminatory animus."

(Cornell v. City & County of San Francisco (2017) 17

Cal.App.5th 766, 791.)

Plaintiff asserts that "Defendants

interfered with Plaintiff's right through:

¶ * Threat of police

involvement ¶ * Intimidation * Coercion[.] ¶

Defendants' conduct was intended to deter Plaintiff from exercising her rights." (4AC, pp. 5:24-6:5.)

However, Plaintiff does not

specify which constitutional or statutory rights were allegedly infringed upon

as a result of Defendants' threats concerning police involvement.

Accordingly, the Court SUSTAINS Defendants' demurrer to the sixth

cause of action for Bane Act.

Seventh to Tenth Causes of Action

Defendants demur to Plaintiff's seventh,

eighth, ninth, and tenth causes of action for false light, intentional

infliction of emotional distress, fraud/intentional misrepresentation, and

declaratory relief, respectively, on the grounds

that (1) Plaintiff exceeded the scope of the Court's June 18, 2026, Order by

asserting entirely new causes of action without the Court's permission; (2) Plaintiff

fails to adequately state a claim for any of these causes of action; and (3)

the claims are uncertain. (Dem., pp.

16:22-20:11.) The Court agrees with the

first argument and deems it unnecessary to address the latter two claims raised by Defendants.

In its June 18, 2026 Order, the Court sustained Defendants' demurrer to the entirety of the TAC and granted Plaintiff leave to amend her existing causes of action. (June 18, 2026 Minute Order, p. 1.) The TAC presented the following causes of action: (1) Violation of UNRUH Civil Rights Act – Civil Code § 51; (2) Retaliation; (3) Defamation; (4) Negligence; (5) Negligent Record-Keeping; and (6) Bane Act. Plaintiff's 4AC retains these six causes of action while adding four additional claims: (7) False Light; (8) Intentional Infliction of Emotional Distress; (9) Fraud/Intentional Misrepresentation; and (10) Declaratory Relief. Consequently, Plaintiff has included these final four claims without the requisite permission from the Court.

Although Plaintiff contends that "the Court's prior Order did not ... expressly prohibit the amendments that Defendants now challenge," the Court notes that it explicitly communicated to Plaintiff during the proceedings that she could not introduce new causes of action without the Court's permission. (Opp. to Dem., pp. 1:28-2:1.) Therefore, Plaintiff's assertion that she "was left to exercise reasonabl[e] judgment in preparing the amended complaint consistent with the Court's ruling" lacks merit. (Opp. to Dem., p. 7:17-19.) The Court clearly stated that she needed permission to add additional claims, which she did not obtain.

Accordingly, the Court SUSTAINS Defendants' demurrer to the seventh, eighth, ninth, and tenth causes of action for false light, intentional infliction of emotional distress, fraud/intentional misrepresentation, and declaratory relief, respectively.

Leave to Amend

Leave to amend must be allowed where there is a reasonable possibility of a successful amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) It is the complainant's burden to show the Court that a pleading can be amended successfully. (*Ibid.*)

In this case, Plaintiff has not shown a reasonable possibility of successfully amending her claim. This marks the fourth demurrer submitted to the Court. Plaintiff has

consistently failed to modify her pleading to address the deficiencies noted in the Court's prior rulings. The Court finds that Plaintiff is unlikely to amend her 4AC to state sufficient claims. Consequently, the Court DENIES Plaintiff's request for leave to Amend.

MOTION TO STRIKE

Legal Standard

Any party, within the time allowed to respond to a pleading, may serve and file a notice of motion to strike the whole or any part thereof. (Code Civ. Proc., § 435, subd. (b)(1).) The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782 ["Matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded"].) The court may also strike all or any part of any pleading not drawn or filed in conformity with California law, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (b), emphasis added.) An immaterial or irrelevant allegation is one that is not essential to the statement of a claim or defense; is neither pertinent to nor supported by an otherwise sufficient claim or defense; or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., § 431.10, subd. (b).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437.)

Discussion

Defendants move to strike the following items: "(1) Plaintiff's unsupported allegations and prayer for punitive damages; (2) the conclusory allegations regarding managing-agent liability and ratification offered solely to support punitive damages; and (3) the Seventh through Tenth Causes of Action, together with the corresponding prayers for relief, because those claims exceed the scope of the Court's June 18, 2026 Order granting leave to amend." (MTS, p. 4:13-17.)

Punitive Damages

Punitive damages may be imposed where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice. (Civ. Code, § 3294, subd. (a).) A motion to strike punitive damages is properly granted when a plaintiff does not state a prima facie claim for punitive damages. (Turman v. Turning Point of Cent. California, Inc. (2010) 191 Cal.App.4th 53, 63.)

“An employer shall not be liable for damages pursuant to subdivision (a), based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.” (Civ. Code, § 3294, subd. (b), emphasis added.) Given that YMCA function as a corporate entity, the provisions of Civil Code section 3294, subdivision (b), are applicable.

“Malice” is conduct intended by the defendant to cause injury to the plaintiff or despicable conduct carried on with a willful and conscious disregard of the rights or safety of others. (Civ. Code, § 3294, subd. (c)(1).) “Punitive damages are proper only when the tortious conduct rises to levels of extreme indifference to the plaintiff’s rights, a level which decent citizens should not have to tolerate.” [Citation.]” (Lackner v. North (2006) 135 Cal.App.4th 1188, 1210.)

“As amended to include [despicable], the [Civil Code section 3294] plainly indicates that absent an intent to injure the plaintiff, ‘malice’ requires more than a ‘willful and conscious’ disregard of the plaintiffs’ interests. The additional component of ‘despicable conduct’ must be found.” (College Hospital Inc. v. Superior Court (1994) 8 Cal.4th 704, 725.) The statute’s reference to despicable conduct represents a “new substantive limitation on punitive damage awards.” (Ibid.) Despicable conduct is “conduct which is so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people. Such conduct has been described as ‘having the character of outrage frequently associated with crime.’” (Tomaselli v. Transamerica Ins. Co.

(1994) 25 Cal.App.4th 1269, 1287.) Further, “[t]here must be evidence that defendant acted with knowledge of the probable dangerous consequences to plaintiff’s interests and deliberately failed to avoid these consequences.” (Flyer’s Body Shop Profit Sharing Plan v. Ticor Title Ins. Co. (1986) 185 Cal.App.3d 1149, 1155.)

“Oppression” means “despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (Civ. Code, § 3294, subd. (c)(2).)

Plaintiff contends that the 4AC “alleges that Defendants intentionally created, maintained, approved, ratified, and disseminated false statements portraying Plaintiff as someone who should be denied access to YMCA facilities. Plaintiff further alleges that Defendants knowingly maintained false internal records, failed to conduct a reasonable investigation despite having the opportunity to do so, and continued to publish and rely upon those false records, causing Plaintiff humiliation, emotional distress, reputational harm, and the denial of her civil rights.” (Opp. to MTS, p. 3:5-13.)

Additionally, Plaintiff claims that “[t]hese allegations, accepted as true for purposes of this [m]otion, are sufficient to support a reasonable inference of malice, oppression and conscious disregard for Plaintiff’s rights within the meaning of Civil Code section 3294.” (Opp. to MTS, p. 3:14-17.) The Court, however, disagrees with this claim.

The Court observes that the sole remaining cause of action is retaliation, which confines its review to the allegations relevant to this claim. Upon examination of these allegations, the Court concludes that they do not substantiate claims of malice or oppression. The conduct described does not demonstrate that Defendants intended to inflict harm upon Plaintiff, nor does it reflect despicable actions taken with a willful disregard for the rights or safety of others. There are insufficient allegations to indicate that Defendants subjected Plaintiff to cruel and unjust hardship while consciously ignoring her rights.

Accordingly, the Court STRIKES
all allegations and prayers for damages related to punitive damages.

Managing Agents and Ratification

Defendants contend that the
Court should strike any allegations asserting that “Ocampo and [] Ezerard were
managing agents of YMCA and that YMCA ratified their conduct[,]” arguing that
these allegations are conclusory. (MTS, p. 7:6-7.)

Defendants maintain that the
4AC “alleges that [] Ocampo and [] Ezerard were managing agents of YMCA and
that YMCA ratified their conduct. Those
allegations are entirely conclusory. Plaintiff
alleges no facts showing that either individual exercised substantial
discretionary authority over significant corporate policy or that any officer,
director, or managing agent authorized or ratified the challenged conduct after
acquiring actual knowledge of it.” (MTS,
p. 7:7-10.)

However, Plaintiff claims that
Ocampo served as the executive director of the YMCA, while Ezerard was “responsible
for membership enforcement and facility operations.” (4AC, p. 2:4-5, 7.) Furthermore, Plaintiff claims that Ocampo and
Ezerard “were managing agents” due to their authority over: (1) membership discipline; (2) facility
enforcement; and (3) the internal communication system. (4AC, p. 3:2-7.) The Court finds that Plaintiff’s allegations
regarding the managerial status of these individuals surpass mere conclusory
statements.

In their reply brief,
Defendants additionally argue that “[t]hose allegations do not establish
managing-agent status for purposes of punitive damages. ¶ Civil
Code section 3294, subdivision (b), requires more than supervisory or
operational authority. The
managing-agent inquiry concerns whether the employee exercised substantial
discretionary authority over decisions that ultimately determine corporate
policy.” (MTS Reply, p. 3:31-24.) However, Defendants do not provide any
statutory or case law to substantiate this claim. The explicit language of Civil Code section
3294, subdivision (b), does not support Defendants’ interpretation.

Accordingly, the Court DENIES

Defendants' request to strike any allegations claiming that Ocampo and Ezerard were managing agents of YMCA and that YMCA ratified their conduct.

Seventh to Tenth Causes of Action and the
Corresponding Prayers for Relief

Defendants move to strike "the
Seventh through Tenth Causes of Action, together with the corresponding prayers
for relief, because those claims exceed the scope of the Court's June 18, 2026,
Order granting leave to amend." (MTS, p.
4:15-17.) The Court agrees with this assessment but will only strike the
corresponding prayers for relief.

As previously articulated,
Plaintiff has indeed exceeded the bounds established by the Court's order,
resulting in the Court sustaining Defendants' demurrer to these causes of
action without leave to amend. Consequently,
there are no actionable causes of action to strike. However, given that the Court has sustained
the demurrer concerning these causes of action, it is deemed appropriate to
strike the corresponding prayers for relief, as there is no foundation for such
relief.

Accordingly, the Court DENIES
Defendants' request to strike the causes of action but GRANTS their request to
strike the corresponding prayers for relief.

Leave to Amend

"When the defect which
justifies striking a complaint is capable of cure, the court should allow leave
to amend. ... This is analogous to an order sustaining a
demurrer." (Vaccaro v. Kaiman
(1998) 63 Cal.App.4th 761, 768, citing Perlman v. Municipal Court (1979)
99 Cal.App.3d 568, 575.)

Here, Plaintiff has not shown
a reasonable possibility of successfully amending her claims. This marks the third motion to strike
submitted to the Court. Plaintiff has
consistently failed to modify her pleading to address the deficiencies noted in
the Court's prior rulings. The Court

finds that Plaintiff is unlikely to amend her 4AC to cure the noted deficiencies. Consequently, the Court DENIES Plaintiff's request for leave to Amend.

ORDERS

1) Defendants' Demurrer to Plaintiff Debra Berry's Fourth Amended Complaint is OVERRULED with respect to the second cause of action and SUSTAINED with respect to the first, third, fourth, fifth, sixth, seventh, eighth, ninth, and tenth causes of action.

2) Defendants' Motion to Strike Portions of Plaintiff Debra Berry's Fourth Amended Complaint is GRANTED IN PART.

a. The Court GRANTS Defendants' request to strike any allegations pertaining to punitive damages and the prayers for relief related to the seventh through tenth causes of action.

3)

The

Court DENIES Defendants' request to strike allegations that Ocampo and Ezerard served as managing agents of the YMCA and that the YMCA ratified their conduct.

4)

The

Court DENIES Defendants' request to strike the seventh through tenth causes of action.

5) Plaintiff Debra Berry's Request for Leave to Amend is DENIED.

6)

Defendants

are ordered to give notice of this Court's ruling.

IT IS SO ORDERED.

DATED: September 23, 2026

Tamara
Hall

Judge
of the Superior Court